

25STCV08306 25STCV08306

County: los-angeles

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Department: 516

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Case Number: 25STCV08306 Hearing Date: August 20, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 20, 2026

Case Name: Carlilie v. Museum Associates

Case

No.: 25STCV08306

Matter: Motion

for Terminating Sanctions

Moving

Party: Defendant Museum

Associates

Responding Party: None

Tentative

Ruling: The Court denies Defendant

Museum Associates' motion for terminating sanctions.

Plaintiff Estrella

Carlile ("Plaintiff") filed this action against Defendants Museum Associates ("Defendant")

and Does 1 to 50. The Complaint alleges two causes of action for: (1) premises

liability; and (2) general negligence.

Defendant

moves for terminating sanctions against Plaintiff. Plaintiff did not file an opposition.

Legal Standard

Where a party willfully disobeys a discovery order, courts have discretion to impose terminating, issue, evidence, or monetary sanctions. (Code Civ. Proc., §§ 2023.010, subd. (g), 2030.290, subd. (c); 2031.300, subd. (c); *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.) The court applies discovery sanctions to correct prejudice, not to punish misbehavior. (See *McGinty v. Superior Court* (1994) 26 Cal.App.4th 204, 210 (*McGinty*).) “The discovery statutes thus ‘evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.’” (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 (*Lopez*).) Ultimate discovery sanctions are justified when there is a willful violation of a discovery order, a history of abuse, and evidence that less severe sanctions would not produce compliance with discovery rules. (*Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (*Brown v. Sup. Ct.* (1986) 180 Cal.App.3d 701, 707.) Further, preventing parties from presenting their cases on the merits is a drastic measure; terminating sanctions should be ordered only when there has been prior noncompliance with an order, and it appears that a less severe sanction would not be effective. (*Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326.)

“Because the persistent refusal to comply with discovery requests is equated with an admission that the disobedient party has no meritorious claim in regard to that issue, the appropriate sanction for such conduct is preclusion of that evidence from trial” (*Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1219.) Exclusion is appropriate even when “a sanction proves determinative in terminating plaintiff’s case.” (*Juarez v. Boy Scouts of America, Inc.* (2000) 81 Cal.App.4th 377, 389.) The trial court must use such sanctions where

appropriate to ensure one party's abuses do not deprive the other of a fair trial. (See *Pate v. Channel Lumber Co.* (1997) 51 Cal.App.4th 1447, 1454-1455.)

Analysis

Defendant

moves for terminating sanctions to dismiss Plaintiff's Complaint or striking Plaintiff's Complaint for failure to obey the Court's May 22, 2026, Court Order to serve verified responses to its Form and Special Interrogatories, and Request for Production of Documents.

Defendant

contends that Plaintiff has misused the discovery process; her failure to comply with the May 22, 2026, Court Order is willful, Defendant has been prejudiced, and no lesser sanctions have been effective. However, the Court is not persuaded by Defendant's arguments.

As an

initial matter, trial is not set in this case; thus, prejudice at this stage is minimal. Moreover, discovery sanctions are meant to "correct prejudice, not to punish misbehavior." (See *McGinty*, supra, 26 Cal.App.4th at p. 210.) Additionally, discovery sanctions are imposed incrementally. (Lopez, supra, 246 Cal.App.4th at p. 604.) The record reflects that only monetary sanctions have been imposed in this case. Defendant has not attempted to seek other available sanctions and has only resorted to the ultimate sanction. The Court finds that terminating sanctions are not warranted at this time because other sanctions may address the prejudice Defendant has endured.

Thus, the

Court denies Defendant's motion for terminating sanctions.

Conclusion

Defendant

Museum Associates' motion for terminating sanctions is denied.